

Material Contracts Index — Project Hawthorn (Target)

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1. Customer Contracts (Top 10 by revenue, FY2025)

#	Customer (anonymised)	Revenue MYR M FY25	Tenor	Auto-renewal	Change-of-control
1	Customer #1 (Telco)	86.4	3 years to 2027	Yes (24m notice)	Termination right
2	Customer #2 (Banking)	62.1	5 years to 2029	No	Notification only
3	Customer #3 (Government)	48.9	3 years to 2026	No (re-tender)	Termination right
4	Customer #4 (Healthcare)	40.2	2 years rolling	Yes (12m notice)	Notification only
5	Customer #5 (Retail)	38.6	2 years to 2026	Yes (6m notice)	Termination right
6	Customer #6 (FMCG)	32.4	3 years to 2027	Yes (12m notice)	Notification only
7	Customer #7 (Utilities)	30.1	5 years to 2028	No	Termination right
8	Customer #8 (Manufacturing)	28.0	2 years to 2026	Yes (6m notice)	Notification only
9	Customer #9 (O&G)	25.4	3 years to 2026	No	Termination right
10	Customer #10 (Insurance)	24.1	3 years to 2027	Yes (12m notice)	Notification only

Customer #1 termination-on-change-of-control is a material risk in deal context. Customer #3 has re-tender notice due 2026-08; pipeline currently rated Amber by Sales.

2. Supplier Contracts (key)

Cloud infrastructure (Pacific Digital Group, 5-year contract to 2027) — most-favoured-nation pricing clause, audit rights, exit period 12 months.

Software licences (4 enterprise vendors) — change-of-control consent required for 2 of 4. Estimated re-licence fees if denied: MYR 4-6M.

Outsourced support services (2-year contract to 2026) — auto-renewal unless 6m notice.

3. Leases

HQ lease (KL) — 12 years to 2034, 5-yearly rent reviews. Subletting permitted with consent. No change-of-control clause.

Operations site (Penang) — 8 years to 2030. Termination on change-of-control without compensation.

Office leases (3 secondary sites) — 3-year rolling, easy to exit.

4. Banking / Financing

RM 90M senior facility — Net Debt/EBITDA covenant 3.0x; Interest Cover 4.0x; Material Adverse Change clause; change-of-control triggers immediate repayment unless lender consents.

RM 25M working capital revolver — change-of-control consent required.

5. Litigation & Disputes

See separate Litigation Register. One material matter outstanding (commercial claim from former customer, quantum MYR 8.4M, defended by management as without merit). All other matters immaterial.

6. Key Personnel Contracts

CEO + CTO — change-of-control "double trigger" entitlement (12-month salary + accelerated vesting if terminated within 12 months post-deal).

5 other senior executives — single-trigger 6-month salary; deal team to assess retention package strategy.

Non-compete: 12 months post-employment, customary geography.

7. Insurance

D&O; — USD 25M aggregate; runs through 2026-11. Buyer should consider tail coverage.

Cyber — MYR 10M aggregate; current.

Professional indemnity — MYR 20M aggregate; current.

8. Regulatory Approvals

Operating licences in 4 jurisdictions. Change of beneficial ownership above 30% requires regulator notification in 3 of 4; only one jurisdiction requires prior approval (timeline 90-120 days).